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(SPACE BELOW FOR FILING STAMP ONLY)

2 **BENSON LEGAL, APC**

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7 File No. SF240212

8 **SERVICE EMAIL: E-Service@Bensonlegal.net**

9 Attorney for: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY

ELECTRONICALLY

FILED

Superior Court of California,
County of San Francisco

12/08/2025

Clerk of the Court

BY: JEFFREY FLORES

Deputy Clerk

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

STATE FARM MUTUAL AUTOMOBILE
INSURANCE COMPANY;

Plaintiff,

vs.

JOSHUA DOLPH GRAVES;

Defendants.

) Case No: CGC-24-620196

) **SETTLEMENT STIPULATION FOR
ENTRY OF JUDGMENT IN THE EVENT
OF DEFAULT**

IT IS HEREBY STIPULATED by and between the Plaintiff, STATE FARM MUTUAL
AUTOMOBILE INSURANCE COMPANY (hereinafter "PLAINTIFF") and Defendant JOSHUA
DOLPH GRAVES (hereinafter the "Defendant(s)") by and through their respective attorneys of
record or authorized representatives, or in pro per, that Judgment be entered in the instant action in
accordance with this Stipulation as follows:

1. The parties stipulate that in the event of default in the terms hereunder, judgment shall
be entered in favor of Plaintiff and against Defendant in the sum of \$7,986.51 plus costs of suit and
prejudgment interest from the date of the loss less any monies paid to date of breach will be entered as
set forth in paragraph 6 below.

1 2. Defendant shall fulfill his obligation pursuant to this Stipulation and Plaintiff agrees
2 that it will not seek the entry of Judgment so long as the following terms and conditions are met:

3 i. Defendant shall pay the compromised sum of \$6,800.00 in monthly payments of
4 \$100.00 starting October 1, 2025, and continuing thereafter on the 1st of each succeeding
5 month, until the entire balance due is paid in full.

6 ii. Said payments shall be interest-free so long as the payments are timely and there
7 is no default.

8 iii. There is no pre-payment penalty should the Defendant wish to pay any or all of
9 this balance off sooner than anticipated.

10 3. Said payments hereunder shall be made payable to BENSON LEGAL, APC
11 referencing Defendant's file number SF240212 and transmitted to BENSON LEGAL, APC, 8550
12 Balboa Blvd, Suite 290, Northridge CA 91325, unless otherwise agreed upon in writing by Plaintiff's
13 counsel.

14 4. Upon timely payment of \$6,800.00 as set forth above, Plaintiff shall forgive the
15 remaining balance of its claim as stated in paragraph 1 and shall forward the original Stipulation to
16 Defendant marked paid in full.

17 5. Defendant hereby agrees to waive all applicable statutes pertaining to any and all
18 limitations imposed upon Plaintiff to bring this matter to trial by reason of the length of time extended
19 to Defendant for purposes of payment herein; this waiver of time is expressly limited for the purposes
20 of filing this Stipulation for Entry of Judgment in case of default hereunder as set forth hereinbelow.

21 6. In the event that Defendant shall default by failing to make any payments provided
22 hereunder when due or at all pursuant to paragraph 7 hereinbelow, Plaintiff may immediately cause
23 Judgment to be entered pursuant to the terms set forth in this Stipulation for the full amount of the
24 agreed upon judgment as set forth in Paragraph 1 less any monies paid to date of the breach; and shall
25 also file a partial Satisfaction of Judgment for all sums previously paid pursuant to this Stipulation.

26 7. Defendant shall be permitted a fifteen (15) day grace period for payment of any
27 installment due hereunder. Plaintiff shall give written notice to Defendant of his default; and,
28 Defendant shall then be allowed an additional ten (10) days from the date of said written notice to

1 cure that particular default. Should Defendant fail to cure the default, Plaintiff shall be permitted to
2 request entry of judgment as set forth hereinabove. Defendant shall provide written notice to
3 Plaintiff's counsel's office of any change to the contact information listed below. If no written notice
4 is given, then the contact information as listed on this stipulation will remain valid for Notices of
5 Default and Monthly Account Statements.

6 Notices of Default shall be sent to the following address:

7 **Joshua Dolph Graves**

8 **1065 Sutter Street #110**

9 **San Francisco, CA 94109**

10 Monthly Account Statements shall be sent to the following e-mail address:

11 **dolphredwoods@icloud.com**

12
13 8. Defendant acknowledges that this Stipulation is executed freely, without reliance upon
14 any representation or statement, whether oral or written, by Plaintiff or its counsel, or by any other
15 persons related, controlled or employed by any of the foregoing.

16 9. The parties agree that upon execution and return of the Stipulation along with the first
17 payment due under the monthly payment plan, Plaintiff shall file a conditional notice of settlement or
18 dismissal of the action. If a dismissal of the action is to be filed, the parties agree that the Court shall
19 retain jurisdiction pursuant California Code of Civil Procedure Section 664.6 in order to enforce the
20 terms of the Stipulation for Entry of Judgment and enter judgment in the event of default.

21
22 10. The parties agree to be bound by any such electronic signatures contained herein
23 pursuant to California Code of Civil Procedure Section 1633.1, et seq.

24 11. The parties agree that a telefaxed copy or photocopy of this Stipulation shall operate
25 as an original for purposes of any filings that may be required with the above referenced Court.
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27 ///

28 ///

[signatures to follow on next page]

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2 DATED: 09/25/2025

By: ~~Joshua Dolph Graves~~
Joshua Dolph Graves
DEFENDANT

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4
5 DATED: 9/25/25

By: 
Christina Cicione, Esq.
ATTORNEY FOR PLAINTIFF

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8
9 DATED: 10/02/2025

By: Kristen A. Onstott
Name of Client Rep:
Kristen Onstott, Claim Specialist
AUTHORIZED REPRESENTATIVE OF
PLAINTIFF

Settlement Stipulation - SF240212

Final Audit Report

2025-09-25

Created:	2025-09-10
By:	Christina Ciccone (christina@bensonlegal.net)
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-  Document created by Christina Ciccone (christina@bensonlegal.net)
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-  Document emailed to dolphredwoods@icloud.com for signature
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-  Signer dolphredwoods@icloud.com entered name at signing as Joshua Dolph Gravee
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-  Document e-signed by Joshua Dolph Gravee (dolphredwoods@icloud.com)
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